

Court No. - 32

Case :- WRIT - C No. - 10243 of 2019

Petitioner :- Mohd. Imran

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Janardan Prasad Tripathi

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Shashi Kant Gupta,J.

Hon'ble Pradeep Kumar Srivastava,J.

This writ petition has been filed, inter alia, for the following reliefs:

(i) issue a writ, order or direction in the nature of certiorari to quash the demand notice/recovery dated 18.3.2017 issued by respondent no. 2/Executive Engineer, Dakshinanchal Vidyut Vitran Khand-III, Kishore Nagar, I.T.I. Road, District Aligarh;

(ii) issue a writ, order or direction in the nature of mandamus directing the respondent no. 2/Executive Engineer, Dakshinanchal Vidyut Vitran Khand-III, Kishore Nagar, I.T.I. Road, District Aligarh to decide the objection of petitioner dated 18.3.2017;

(iii) to pass any other suitable order under the facts and circumstances of the case;

(iv) to award the cost of the petition in favour of the petitioner.

Heard learned counsel for the parties and perused the record.

Considering the facts and circumstances of the case, this petition is finally disposed of with the direction that if the petitioner is aggrieved by demand notice issued by respondent no. 2, he may take recourse under clause 6.5 of U.P. Electricity Supply Code, 2005 before the appropriate authority by way of a representation within fifteen days from today, the same shall be decided by the concerned authority within a period of one month from the date of receipt of certified copy of this order along with representation.

For the period of 45 days from today, no coercive measures shall be taken against the petitioner.

In case, such representation is not filed within fifteen days, the interim protection granted to the petitioner shall automatically become inoperative.

However, it is made clear that this order is being passed in respect of outstanding dues against the petitioner not with regard to alleged theft of electricity.

With the above observations, writ petition is finally disposed of.

Order Date :- 2.4.2019

RCT/-